

STATE OF NEW YORK

260--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. MARTINEZ, ADDABBO -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil practice law and rules, in relation to extreme risk protection orders

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 2 and 3 of section 6340 of the civil practice
2 law and rules, subdivision 2 as amended by chapter 425 of the laws of
3 2024, subdivision 3 as added by chapter 19 of the laws of 2019, are
4 amended to read as follows:
5 2. "Petitioner" means: (a) a law enforcement agency that employs a
6 police officer, as such term is defined in section 1.20 of the criminal
7 procedure law, or a police officer, deputy sheriff, or district attorney
8 with jurisdiction in the county or city where the person against whom
9 the order is sought resides; (b) a family or household member, as
10 defined in subdivision two of section four hundred fifty-nine-a of the
11 social services law, of the person against whom the order is sought; (c)
12 a school administrator as defined in section eleven hundred twenty-five
13 of the education law, or a school administrator's designee, of any
14 school in which the person against whom the order is sought is currently
15 enrolled or has been enrolled in the six months immediately preceding
16 the filing of the petition; or (d) a licensed physician, licensed
17 psychiatrist, licensed psychologist, registered nurse, licensed clinical
18 social worker, certified clinical nurse specialist, certified nurse
19 practitioner, licensed clinical marriage and family therapist, regis-
20 tered professional nurse, licensed master social worker or licensed
21 mental health counselor who has treated the person against whom the
22 order is sought in the six months immediately preceding the filing of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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the petition. For purposes of this article, a school administrator's designee shall be employed at the same school as the school administrator and shall be any of the following who has been designated in writing to file a petition with respect to the person against whom the order is sought: a school teacher, school guidance counselor, school psychologist, school social worker, school nurse, or other school personnel required to hold a teaching or administrative license or certificate, and full or part-time compensated school employee required to hold a temporary coaching license or professional coaching certificate.

3. "Respondent" means the person, twelve years of age or older, against whom an extreme risk protection order is or may be sought under this article.

§ 2. Section 6341 of the civil practice law and rules, as amended by chapter 425 of the laws of 2024, is amended to read as follows:

§ 6341. Application for an extreme risk protection order. 1. In accordance with this article, a petitioner may file an application, which shall be sworn, and accompanying supporting documentation, setting forth the facts and circumstances justifying the issuance of an extreme risk protection order. Provided, however, that a petitioner that is a law enforcement agency that employs a police officer, as such term is defined in section 1.20 of the criminal procedure law, or is a police officer, deputy sheriff, or district attorney with jurisdiction in the county or city where the person against whom the order is sought resides shall file such application upon the receipt of credible information that an individual is likely to engage in conduct that would result in ~~[serious harm to himself or others, as defined in paragraph one or two of subdivision (a) of section 9.39 of the mental hygiene law]:~~ (a) substantial risk of physical harm to himself as manifested by threats of or attempts at suicide or serious bodily harm or other conduct demonstrating that such respondent is dangerous to himself; or (b) a substantial risk of physical harm to other persons as manifested by homicidal or other violent behavior by which others are placed in reasonable fear of serious physical harm, unless such petitioner determines that there is no probable cause for such filing.

2. A police officer, deputy sheriff, or district attorney who would otherwise be required to file an application under this section has the discretion not to file such an application if the police officer, deputy sheriff, or district attorney can determine with reasonable certainty that the respondent: (a) has previously been deemed certified not suitable to possess a rifle or shotgun pursuant to subdivision sixteen of section 265.00 of the penal law; (b) is a person presently subject to an extreme risk protection order; (c) is a person presently incarcerated whose earliest release date is no less than one year from the date of the filing of the petition; or (d) is a person under the age of eighteen, and the petition would be based only upon such person's likelihood to engage in conduct posing a threat of harm to himself, and the person did not threaten or use physical force directed at another person or a school, and the person did not use or threaten the use of a firearm, rifle or shotgun, and there is no evidence of a firearm, rifle, shotgun or ammunition possessed by anyone in the person's household.

3. Such application and supporting documentation shall be filed in the supreme court in the county in which the respondent resides. If the petitioner is unable to identify an in-state address for the respondent, the application and documentation shall be filed in the supreme court in any county where the conduct alleged in the petition occurred. The chief administrator of the courts shall adopt forms that may be used for

1 purposes of such applications and the court's consideration of such
2 applications. Such application form shall allow for affirmation pursuant
3 to rule twenty-one hundred six of this chapter and include inquiry as to
4 whether the petitioner knows, or has reason to believe, that the
5 respondent owns, possesses or has access to a firearm, rifle or shotgun
6 and if so, a request that the petitioner list or describe such firearms,
7 rifles and shotguns, and the respective locations thereof, with as much
8 specificity as possible.

9 § 3. Subdivisions 1, 2, 3 and 8 of section 6342 of the civil practice
10 law and rules, subdivisions 1, 3 and 8 as added by chapter 19 of the
11 laws of 2019, and subdivision 2 as amended by chapter 450 of the laws of
12 2025, are amended to read as follows:

13 1. Upon application of a petitioner pursuant to this article, the
14 court may issue a temporary extreme risk protection order, ex parte or
15 otherwise, to prohibit the respondent from purchasing, possessing or
16 attempting to purchase or possess a firearm, rifle or shotgun, upon a
17 finding that there is probable cause to believe the respondent is likely
18 to engage in conduct that would result in ~~[serious harm to himself,~~
19 ~~herself or others, as defined in paragraph one or two of subdivision (a)~~
20 ~~of section 9.39 of the mental hygiene law]~~: (a) substantial risk of
21 physical harm to himself as manifested by threats of or attempts at
22 suicide or serious bodily harm or other conduct demonstrating that such
23 respondent is dangerous to himself; or (b) a substantial risk of phys-
24 ical harm to other persons as manifested by homicidal or other violent
25 behavior by which others are placed in reasonable fear of serious phys-
26 ical harm. Such application for a temporary order shall be determined in
27 writing on the same day the application is filed.

28 2. In determining whether grounds for a temporary extreme risk
29 protection order exist, the court shall consider any relevant factors
30 including, but not limited to, the following acts of the respondent:

31 (a) a threat or act of violence or use of physical force directed
32 toward self, the petitioner, or another person;

33 (b) a violation or alleged violation of an order of protection;

34 (c) any pending charge or conviction for an offense involving the use
35 of a weapon;

36 (d) the reckless use, display or brandishing of a firearm, rifle or
37 shotgun;

38 (e) any history of a violation of an extreme risk protection order;

39 (f) evidence of recent or ongoing abuse of controlled substances or
40 alcohol;

41 (g) evidence of recent acquisition of a firearm, rifle, shotgun or
42 other deadly weapon or dangerous instrument, or any ammunition therefor;
43 or

44 (h) evidence of recent acts of aggravated cruelty to animals as
45 defined in section three hundred fifty-three-a of the agriculture and
46 markets law.

47 In considering the factors under this subdivision, the court shall
48 consider the time that has elapsed since the occurrence of such act or
49 acts and the age of the person at the time of the occurrence of such act
50 or acts.

51 For the purposes of this subdivision, "recent" means within the six
52 months prior to the date the petition was filed.

53 The court shall not consider whether a police officer, deputy sheriff,
54 or district attorney may have had the discretion to decline to file an
55 application in determining whether grounds for a temporary extreme risk
56 protection order exist.

3. The application of the petitioner and supporting documentation, if any, shall set forth the factual basis for the request and probable cause for issuance of a temporary order. The court may conduct an examination under oath of the petitioner and any witness the petitioner may produce. Hearsay evidence shall not be excluded and shall be weighed appropriately.

8. A law enforcement officer serving a temporary extreme risk protection order shall request that the respondent immediately surrender to the officer all firearms, rifles and shotguns in the respondent's possession and the officer shall conduct any search permitted by law for such firearms. The law enforcement officer shall take possession of all firearms, rifles and shotguns that are surrendered, that are in plain sight, or that are discovered pursuant to a lawful search. As part of the order, the court may also direct a police officer or deputy sheriff to search for firearms, rifles and shotguns in the respondent's possession in a manner consistent with the procedures of article six hundred ninety of the criminal procedure law.

§ 4. Subdivisions 1 and 2 and paragraph (d) of subdivision 3 of section 6343 of the civil practice law and rules, as added by chapter 19 of the laws of 2019, are amended to read as follows:

1. In accordance with this article, no sooner than three business days nor later than six business days after service of a temporary extreme risk protection order and, alternatively, no later than ten business days after service of an application under this article where no temporary extreme risk protection order has been issued, unless the respondent waives their right to a hearing and consents to the final extreme risk protection order, the supreme court shall hold a hearing, in the manner of a summary proceeding, to determine whether to issue a final extreme risk protection order and, when applicable, whether a firearm, rifle or shotgun surrendered by, or removed from, the respondent should be returned to the respondent. The respondent shall be entitled to more than six business days if a temporary extreme risk protection order has been issued and the respondent requests a reasonable period of additional time to prepare for the hearing. Where no temporary order has been issued, the respondent may request, and the court may grant, additional time beyond the ten days to allow the respondent to prepare for the hearing. Upon receipt of waiver and consent the court shall dispense with a hearing and promptly issue the final extreme risk protection order.

2. At the hearing pursuant to subdivision one of this section, the petitioner shall have the burden of proving, by clear and convincing evidence, that the respondent is likely to engage in conduct that would result in ~~[serious harm to himself, herself or others, as defined in paragraph one or two of subdivision (a) of section 9.39 of the mental hygiene law]:~~ (a) substantial risk of physical harm to themselves as manifested by threats of or attempts at suicide or serious bodily harm or other conduct demonstrating that such respondent is dangerous to themselves; or (b) a substantial risk of physical harm to other persons as manifested by homicidal or other violent behavior by which others are placed in reasonable fear of serious physical harm. The court may consider the petition and any evidence submitted by the petitioner, any evidence submitted by the respondent, any testimony presented, and the report of the relevant law enforcement agency submitted pursuant to subdivision nine of section sixty-three hundred forty-two of this article. The court shall also consider the factors set forth in subdivision two of section sixty-three hundred forty-two of this article. Hearsay

evidence shall not be excluded and shall be weighed appropriately. The court shall not consider whether a police officer or district attorney may have had the discretion to decline to file an application in determining whether grounds for an extreme risk protection order exist.

(d) A law enforcement officer serving a final extreme risk protection order shall request that the respondent immediately surrender to the officer all firearms, rifles and shotguns in the respondent's possession and the officer shall conduct any search permitted by law for such firearms. The law enforcement officer shall take possession of all firearms, rifles and shotguns that are surrendered, that are in plain sight, or that are discovered pursuant to a lawful search. As part of the order, the court may also direct a police officer or deputy sheriff to search for firearms, rifles and shotguns in a respondent's possession consistent with the procedures of article six hundred ninety of the criminal procedure law.

§ 5. Subdivision 1 of section 6344 of the civil practice law and rules, as added by chapter 19 of the laws of 2019, is amended to read as follows:

1. When a law enforcement officer takes any firearm, rifle or shotgun pursuant to a temporary extreme risk protection order or a final extreme risk protection order, the officer or deputy sheriff shall give to the person from whom such firearm, rifle or shotgun is taken a receipt or voucher for the property taken, describing the property in detail. In the absence of a person, the officer or deputy sheriff shall leave the receipt or voucher in the place where the property was found, mail a copy of the receipt or voucher, retaining proof of mailing, to the last known address of the respondent and, if different, the owner of the firearm, rifle or shotgun, and file a copy of such receipt or voucher with the court. All firearms, rifles and shotguns in the possession of a law enforcement official pursuant to this article shall be subject to the provisions of applicable law, including but not limited to subdivision six of section 400.05 of the penal law; provided, however, that any such firearm, rifle or shotgun shall be retained and not disposed of by the law enforcement agency for at least two years unless legally transferred by the respondent to an individual permitted by law to own and possess such firearm, rifle or shotgun.

§ 6. Section 6345 of the civil practice law and rules, as added by chapter 19 of the laws of 2019, is amended to read as follows:

§ 6345. Request for renewal of an extreme risk protection order. 1. If a petitioner believes a person subject to an extreme risk protection order continues to be likely to engage in conduct that would result in ~~[serious harm to himself, herself, or others, as defined in paragraph one or two of subdivision (a) of section 9.39 of the mental hygiene law]~~: (a) substantial risk of physical harm to themselves as manifested by threats of or attempts at suicide or serious bodily harm or other conduct demonstrating that such respondent is dangerous to themselves; or (b) a substantial risk of physical harm to other persons as manifested by homicidal or other violent behavior by which others are placed in reasonable fear of serious physical harm, such petitioner may, at any time within sixty days prior to the expiration of such existing extreme risk protection order, initiate a request for a renewal of such order, setting forth the facts and circumstances necessitating the request. The chief administrator of the courts shall adopt forms that may be used for purposes of such applications and the court's consideration of such applications. The court may issue a temporary extreme risk protection order in accordance with section sixty-three hundred forty-two of this

1 article, during the period that a request for renewal of an extreme risk
2 protection order is under consideration pursuant to this section.

3 2. A hearing held pursuant to this section shall be conducted in the
4 supreme court, in accordance with section sixty-three hundred forty-
5 three of this article, to determine if a request for renewal of the
6 order shall be granted. The court shall not consider whether a police
7 officer, deputy sheriff, or district attorney may have had the
8 discretion to decline to file an application in determining whether to
9 renew the extreme risk protection order. The respondent shall be served

10 with written notice of an application for renewal a reasonable time
11 before the hearing, and shall be afforded an opportunity to fully
12 participate in the hearing. The court shall direct service of such
13 application and the accompanying papers in the manner and in accordance
14 with the protections for the petitioner set forth in subdivision six of
15 section sixty-three hundred forty-two of this article.

16 § 7. Subdivision 1 of section 6346 of the civil practice law and
17 rules, as added by chapter 19 of the laws of 2019, is amended to read as
18 follows:

19 1. A protection order issued pursuant to this article, and all records
20 of any proceedings conducted pursuant to this article, shall be sealed
21 upon expiration of such order and the clerk of the court wherein such
22 proceedings were conducted shall immediately notify the commissioner of
23 the division of criminal justice services, the heads of all appropriate
24 police and sheriff departments, applicable licensing officers, and all
25 other appropriate law enforcement agencies that the order has expired
26 and that the record of such protection order shall be sealed and not be
27 made available to any person or public or private entity, except that
28 such records shall be made available to:

29 (a) the respondent or the respondent's designated agent;

30 (b) courts in the unified court system;

31 (c) police forces and departments having responsibility for enforce-
32 ment of the general criminal laws of the state, including sheriff
33 departments;

34 (d) any state or local officer or agency with responsibility for the
35 issuance of licenses to possess a firearm, rifle or shotgun, when the
36 respondent has made application for such a license; and

37 (e) any prospective employer of a police officer or peace officer as
38 those terms are defined in subdivisions thirty-three and thirty-four of
39 section 1.20 of the criminal procedure law, in relation to an applica-
40 tion for employment as a police officer or peace officer; provided,
41 however, that every person who is an applicant for the position of
42 police officer or peace officer shall be furnished with a copy of all
43 records obtained under this subparagraph and afforded an opportunity to
44 make an explanation thereto.

45 § 8. This act shall take effect immediately.